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Supreme Court, U.S.
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In The
SUPREME COURT OF THE UNITED STATES
October Term, 1998

JAY B. MARCUS, MARCUS FOR CONGRESS, THE NATURAL LAW PARTY OF IOWA, EDWARD T. RUSK OF THE WORKING CLASS PARTY, EDWARD T. RUSK FOR CONGRESS, MICHAEL CUDDEHE, MICHAEL DIMICK, ROGERS BADGETT, PETER LAMOUREUX, FRED GRATZON, and SUSAN MARCUS,

Petitioners,

v.

IOWA PUBLIC TELEVISION, A STATE AGENCY, and DANIEL K. MILLER IN HIS OFFICIAL CAPACITY,

Respondents.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Eighth Circuit

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RESPONDENTS' BRIEF IN OPPOSITION TO PETITION FOR A WRIT OF CERTIORARI

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QUESTION PRESENTED

Whether this Court should reexamine the questions decided last Term in *Arkansas Educational Television Commission v. Forbes*, 118 S. Ct. 1633 (1998)?

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INTRODUCTION

Petitioners do not establish a compelling reason for granting certiorari. Petitioners do not, and cannot, point to any conflict between courts or to any departure from the accepted and usual course of judicial proceedings. Sup. Ct. R. 10. Neither do they identify any "important question of federal law that has not been, but should be, settled by this Court." Sup. Ct. R. 10(c). Just last Term, this Court settled the same issues in *Arkansas Educational Television Commission v. Forbes*, 118 S. Ct. 1633 (1998), and this case presents no new important or unsettled questions. Indeed, in the court below – before this Court reversed the Eighth Circuit's decision in Forbes – Petitioners argued that "[t]his case is indistinguishable from the recent eighth circuit [*sic*] case [of *Forbes*]." Appellants' Brief to the Court of Appeals, filed Nov. 14, 1996, at 13.

OPINIONS BELOW

The decision of the U.S. District Court for the Southern District of Iowa is reported at 24 Med. L. Rpt. 2531 (S.D. Iowa 1996) and at 1996 WL 764143. The Eighth Circuit's denial of emergency injunctive relief is reported at 97 F.3d 1137 (8th Cir. 1996). The Eighth Circuit's order holding this case in abeyance pending this Court's decision in *Arkansas Educational Television Commission v. Forbes* was entered on March 24, 1997 (Appendix ("App.") i). The decision of the Eighth Circuit affirming the District Court's dismissal is reported at 150 F.3d 924 (8th Cir. 1998).

STATEMENT OF THE CASE

Respondents are a state-owned public broadcaster, Iowa Public Television ("IPTV"), and its programming director, Daniel K. Miller. IPTV broadcasts a weekly program entitled "*Iowa Press*," in which members of the press question invited guests about topics of public interest. In 1996, IPTV decided to broadcast a series of programs on *Iowa Press* with congressional candidates as guests. After considering which guests would be most interesting to the viewing audience, Respondents did not invite Petitioners – candidates in the 1996 election – to participate in the programs. Respondents made their decision on the basis of a predetermined policy and based upon their professional editorial judgment that Petitioners were not newsworthy.

Petitioners (Plaintiffs below) brought an action in the United States District Court for the Southern District of Iowa alleging infringement of their First Amendment rights and seeking injunctive relief. The District Court denied Petitioners' request for preliminary injunctive relief and, ultimately, dismissed Petitioners' action for injunctive relief. Though declining to decide whether the parties were entitled to a trial by jury, the District Court submitted eight special verdict questions to the jury. The District Court found that "[e]ach of the jury's answers to the special verdict questions was fully supported by the evidence in the record," and the court made the same findings based upon an "independent consideration of the evidence." *Marcus v. Iowa Public Television*, No. 4-96-CV-80690, 1996 WL 764143, at *2 (S.D. Iowa Oct. 9, 1996).

The jury found, among other things, that Petitioners failed to prove that they had been excluded by IPTV based

upon their political viewpoints. Instead, the jury found that Petitioners were excluded "on the basis of independent journalistic and editorial judgments the [Respondents] made based on newsworthiness." *Id.* The court applied the "strict scrutiny" standard for limited public fora, and found that the "network's exercise of journalistic discretion [met] generally accepted broadcast industry standards for making judgments about newsworthiness, as required by the 'Statement of Principles of Editorial Integrity in Public Broadcasting.'" *Id.* at *3-*4.

Petitioners filed an emergency motion for injunctive relief in the United States Court of Appeals for the Eighth Circuit. This, too, was denied, as Petitioners failed to demonstrate a likelihood of success on the merits. Furthermore, though acknowledging that a determination of newsworthiness is based on journalistic discretion, the Court of Appeals noted that "there are clearly objective elements of newsworthiness." *Marcus v. Iowa Public Television*, 97 F.3d 1137, 1143 (8th Cir. 1996). The panel concluded "that IPTV's professional broadcasters are generally better aware of what constitutes appropriate programming than a group of federal judges; it is clearly in the public interest in having a state-operated public television free of unnecessary interference by a federal court." *Id.* at 1144.

On March 24, 1997, the Eighth Circuit, on its own motion, removed this case from the Court's en banc oral argument calendar (App. i). The Court of Appeals ordered that further proceedings in this appeal be held in abeyance pending this Court's decision in *Forbes*.

In *Forbes*, this Court held that a political candidate debate program produced by a state-owned broadcaster was a non-

public forum, and that the state-owned broadcast licensee could limit participation in the debate program in a viewpoint-neutral and reasonable manner. *Forbes* was decided last Term, and, shortly thereafter, after receiving supplemental briefs but without hearing oral argument, the Eighth Circuit, in a two-page en banc opinion, affirmed the District Court's dismissal of *Marcus,* 1996 WL 764143. *Marcus v. Iowa Public Television*, 150 F.3d 924 (8th Cir. 1998) (en banc). The Court of Appeals held that *Marcus* is controlled by *Forbes*. *Marcus*, 150 F.3d at 925. Moreover, the Court of Appeals found that the District Court did not clearly err in finding that the Petitioners "were not excluded on the basis of viewpoint," and that the Petitioners' "exclusion was otherwise reasonable." *Id.*

ARGUMENT

I. *Forbes* Protects the Editorial Decisions of State-Owned Public Television Stations that Sponsor Candidate Debates.

The issues raised by the Petitioners in this case were resolved in *Forbes*, 118 S. Ct. 1633, and this case presents no unsettled issues. In *Forbes*, a state-owned public broadcaster sponsored a debate for Arkansas' Third District candidates for the House of Representatives. The broadcaster invited the major party candidates but, after considering the lack of public interest in Forbes' campaign, did not invite Forbes to participate. The Eighth Circuit held that Forbes had a First Amendment right to participate, and this Court reversed. This Court held that the debate was a non-public forum, and that Forbes' exclusion was a "reasonable, viewpoint-neutral exercise of journalistic discretion consistent with the First Amendment." *Id.* at 1644.

"Although public broadcasting as a general matter does not lend itself to scrutiny under the forum doctrine, candidate debates present the narrow exception to the rule." *Forbes*, 118 S. Ct. at 1640. A state-owned public broadcaster may create a candidate debate that is a non-public forum, where access is at the broadcaster's invitation, based on the broadcaster's good-faith editorial judgment. Such a program is characterized by selective, rather than general, access. *Id.* at 1642-43. When a debate on a state-owned public broadcasting facility is a non-public forum, the editor's decision to exclude a legally qualified candidate must not be based on the speaker's viewpoint and otherwise must be reasonable in light of the purpose of the forum. *Id.* at 1643.

This Court stressed in *Forbes* that the evidence offered "powerful support for the jury's express finding that [the public broadcaster's] exclusion of Forbes was not the result of 'political pressure from anyone inside or outside [AETC].'" *Id.* at 1644.

II. The District Court's Findings of Fact and Law, as Affirmed by the Court of Appeals, Satisfy the *Forbes* Test.

The District Court below adopted findings of fact from the jury's advisory special verdict. *Marcus,* 1996 WL 764143, Pet. Apdx B-26. Among other things, the District Court found:

> The Petitioners could not prove that IPTV had not acted in accordance with a predetermined policy in deciding whom to invite to the *Iowa Press* programs (special verdict answer 3);
>
> None of the Petitioner candidates proved that his appearance on *Iowa Press* would have been newsworthy (special verdict answer 5);
>
> The Petitioner candidates could not prove that IPTV excluded them from *Iowa Press* based on disagreement with their political opinions (special verdict answer 6);
>
> IPTV excluded the Petitioner candidates from *Iowa Press* based on independent journalistic judgments regarding newsworthiness (special verdict answer 7); and

> IPTV intended to open *Iowa Press* only to candidates whom IPTV invited (special verdict answer 8).

Id. at *2, Pet. Apdx B-29-30.

In a two-page opinion, the Court of Appeals held that this case is controlled by *Forbes*, 118 S. Ct. 1633, and affirmed the District Court's dismissal. *Marcus v. Iowa Public Television*, 150 F.3d at 925, Pet. Apdx A-1. The Court of Appeals found that the District Court did not clearly err in finding that IPTV did not exclude the candidates because of their viewpoints, and that their exclusion was otherwise reasonable. *Id.* In *Marcus v. Iowa Public Television*, as in *Forbes*, 118 S. Ct. at 1644, "[t]he evidence provide[s] powerful support for the jury's express finding" that the exclusion was not influenced by political pressure, as well as for the District Court's holding that the exclusion was otherwise reasonable.

Petitioners assert that IPTV's reliance on newsworthiness as a criterion for excluding them is impermissible under *Forbes*. Pet. at 8-17. Petitioner's Procrustean reading ignores this Court's confirmation in *Forbes* that a public broadcaster's "journalistic" judgment is central to the congressional framework of broadcast regulation, relying on *Columbia Broadcasting System v. Democratic National Committee*, 412 U.S. 94, 127 (1973) ("*CBS v. DNC*"). *Forbes*, 118 S. Ct. at 1640. Among other things, a "journalistic" judgment can encompass newsworthiness.

Petitioners' invitation to the Court to review the details of the District Court's fact-finding, Pet. at 18-20, also ignores the reminder in *Forbes* that courts need not, and must not,

become involved in attempting to supervise the editorial decisions of broadcast journalists. *Forbes*, 118 S. Ct. at 1640 ("[C]ourts 'would be required to oversee far more of the day-to-day operations of broadcasters' conduct. . . .'") (quoting *CBS v. DNC*, 412 U.S. at 127).

Petitioners, citing *Regan v. Time, Inc.*, 468 U.S. 641 (1984), argue that newsworthiness is a criterion forbidden to state-owned public broadcasters. Pet. at 10-11. Besides ignoring *Forbes'* emphasis on the state-owned broadcast licensee's editorial role, this argument misapplies *Regan*. In *Regan*, the U.S. government was not exercising the editorial role of operating a press, and the government's decisions about content were not proven to be insulated from political pressure (as is the case with IPTV's editorial process). Rather, in *Regan* the government attempted to censor a decision by an editor about content. *Regan* therefore is inapposite.

Petitioners' current theme, that the instant case shows unreasonable editorial decision-making, in contrast to the reasonable editorial judgments in *Forbes*, is ironic in light of Petitioners' argument below that, "[t]his case is indistinguishable from the recent eighth circuit [*sic*] case [of *Forbes*]." Appellants' Brief to the Court of Appeals, filed Nov. 14, 1996, at 13.

No two cases are likely to have facts that trace each other exactly. However, comparing facts in the instant case to those in *Forbes* reveals similarities of decisional significance. Both broadcasters are networks owned by the state; both follow the *Statement of Principles of Editorial Integrity in Public Broadcasting* (*Forbes*, 118 S. Ct. at 1637; *Marcus*, 1996 WL 764143, at *3-*4, Pet. Apdx B-34; *Marcus v. Iowa*

Public Television, 97 F.3d at 1142, Pet. Apdx A-18 (noting that Iowa Code § 256.82(3) specifically adopts the *Principles of Editorial Integrity*)); and both state networks make journalistic decisions that are insulated from political pressure. For all these reasons, last Term's decision in *Forbes* settled all the issues raised by the Petition; Petitioners fail to present any new unsettled questions.

CONCLUSION

The petition for a writ of certiorari should be denied.

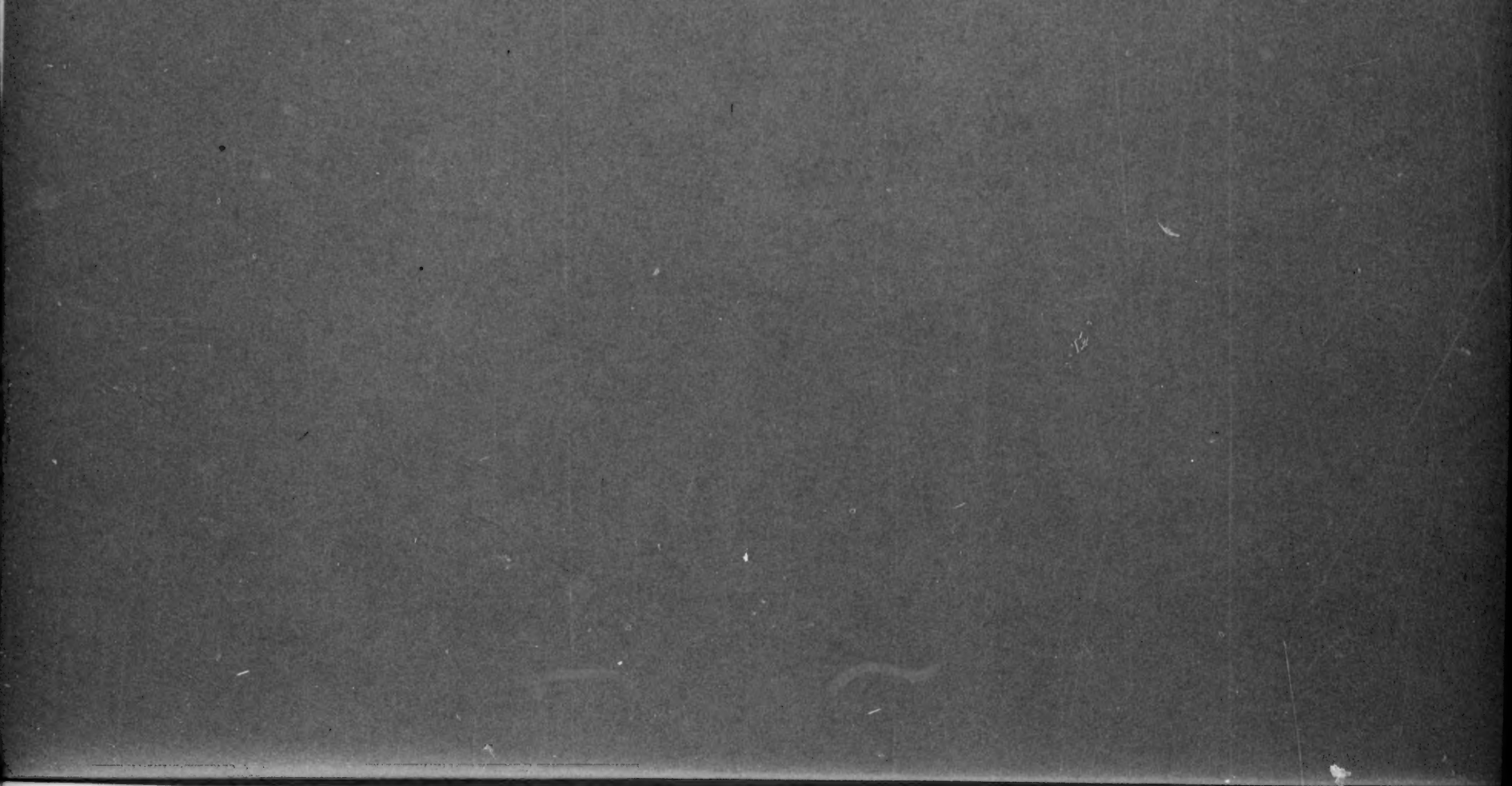
Respectfully submitted,

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November 30, 1998

APPENDIX



United States Court of Appeals
FOR THE EIGHTH CIRCUIT

96-3645SIDM

Jay B. Marcus, et al.,	*	
	*	
Appellants,	*	Appeal from the United States District Court for the
	*	
v	*	Southern District of Iowa
	*	
Iowa Public Television, etc., et al.,	*	
	*	
	*	
Appellees.	*	
	*	

On the Court's own motion, this case is removed from the Court's en banc oral argument calendar for Tuesday, April 15, 1997. Further proceedings in this appeal will be held in abeyance pending the United States Supreme Court's decision in No. 96-779 Arkansas Educational Television Commission v. Ralph P. Forbes. This order moots appellees' motion to postpone oral argument.

March 24, 1997

Order Entered at the Direction of the Court:

Clerk, U.S. Court of Appeals, Eighth Circuit